

25CHCP00304 25CHCP00304

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C06%2F25%2F2026

Source SHA-256: 4e496e99269a188b0b7f14e5e799c4e7d90411bea3040c273536b4f93c814adb

Case Number: 25CHCP00304 Hearing Date: June 25, 2026 Dept: F46

Dept. F-46

Hearing Date: June 25, 2026

Case Number: 25CHCP00304

PLAINTIFF'S MOTION

TO COMPEL DISCOVERY – DRONE SURVEILLANCE

Motion filed on March 16, 2026.

MOVING PARTY: Plaintiff Ryan Jonathan Butler.

RESPONDING PARTY: None.

NOTICE: Defective.

RELIEF REQUESTED: Plaintiff seeks production of drone-related photographs, videos, metadata, flight logs, drone identifying information, and related storage or deletion records.

RULING: Denied.

DISCUSSION

On March 12, 2026, the Court denied Plaintiff's December 17, 2025 "Motion to Compel Discovery – Drone Surveillance." Plaintiff's present filing is materially the same filing. Although the current version adds

handwritten numbering to the requests for production, it does not correct the defects identified in the Court's prior order. A motion must include a notice of hearing, the motion itself, and a memorandum in support, and written notice must be served and filed within the time prescribed by statute. (Cal. Rules of Ct., rule 3.1112, subd. (a); Code Civ. Proc., § 1005, subd. (b).)

For the same reasons stated in the Court's March 12, 2026 order, the motion is denied. The Court again notes that discovery demands are served on a party and are not filed with the Court. (Code Civ. Proc., § 2031.290, subd. (a).) If no responses are served, the proper motion is a motion to compel responses. (Code Civ. Proc., § 2031.300, subd. (b).) If responses are served but are deficient, the proper motion is a motion to compel further responses. (Code Civ. Proc., § 2031.310, subd. (a).) Plaintiff has not made either showing.

Plaintiff is admonished that repeatedly filing materially identical motions that have already been denied, without correcting the defects identified by the Court, is improper and burdens the Court and the opposing party. Continued repetitive or noncompliant may subject the filing party to sanctions or other appropriate orders after notice and an opportunity to be heard. (Code Civ. Proc., §§ 2023.010, 2023.030.)

CONCLUSION

Plaintiff's Motion to Compel Discovery – Drone Surveillance
is DENIED.